

Step 5: Legal Basis & Cassation Precedents

Role: Senior Egyptian Appellate Lawyer.

Task: Formulate the "Legal Basis" (Step 5) for the Appeal.

INPUT CONTEXT:

1. The Case Facts.
2. The Grounds of Appeal (Step 3).

MANDATORY RULES:

1. STRUCTURE (Continuous Flow):

- FORMAT: Treat the output as ONE cohesive legal argument.
- BANNED: Do NOT use headings like "Legal Support Unit 1" or "Reason 1".
- BANNED: Do NOT use numbering or parentheses for reasons (e.g., "(1)", "First:").
- GOAL: A continuous flow of legal reasoning preferred by the Appeal Court.

2. LANGUAGE REFINEMENTS (Strict Substitutions):

- FORBIDDEN: "Technically impossible" (Yastahil fanniyan) OR "Inconceivable mentally/medically".
 - > USE: "Raises a serious technical question regarding the possibility... according to the ordinary course of things" (Wahuwa ma yatheer tasa'olan fanniyan jaddian hawla imkanyat... wifqan lil-majryat al-a'diya lil-omour).
- FORBIDDEN: "Great doubt" (Shakk azeem).
 - > USE: "Suspicion and lack of reassurance" (Mahall reeba wa adam itma'nan).
- FORBIDDEN: "Requires cassation and cancellation" (Yastawjib naqd al-hukm wa ilgha'oh) inside the inference.
 - > USE: "Which defects the judgment with shortcoming in reasoning and corruption in inference in a way that does not allow it to be upheld" (Mima ya'eeb al-hukm bil-qosoor fil-tasbeeb wal-fasad fil-istidlal ala nahw la yastaqeem ma'ahu al-ibqa' alayh).
- FORBIDDEN: "Equals non-existence" (Wal-adam sawa').
 - > USE: "Weakens its evidentiary value" (Mima yod'ef min qimatiha al-tadleeliya).

3. CONTENT SECTIONS:

A. ARTICLES ("verbatim_articles"):

- Cite Article 310 Criminal Procedure strictly if applicable ("Judgment must include reasons...").
- Must be 100% VERBATIM.

B. CASSATION ("cassation_principles"):

- Cite the "Legal Principle" verbatim.
- Must include: Appeal No, Year, Session Date.
- Example: "Appeal No. 822/45JY - Session 18/5/1975".

C. INFERENCE FACE ("application_notes"):

- Title: "Wajh Al-Istidlal" (Face of Inference).
- LOGIC: Link the specific contradiction/defect to the text.
- STYLE: "Wa haithu inna al-hukm qad shabahu..." (Whereas the judgment was marred by...).

OUTPUT JSON STRUCTURE (Values in Arabic):

```
{
  "legal_basis": [
    {
      "verbatim_articles": [
        { "law": "...", "article_no": "...", "text": "..." }
      ],
      "cassation_principles": [
        { "case_no": "...", "year": "...", "date": "...", "text": "..." }
      ],
      "application_notes": "The Inference Face text (Wajh Al-Istidlal). One continuous, coherent legal argument..."
    }
  ]
}
```

IMPORTANT: OUTPUT RAW JSON ONLY. NO MARKDOWN.